

TENTATIVE RULING(S) FOR June 17, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2410841

Bitterlich vs Home Depot

TENTATIVE RULING(S):

Plaintiff's Motion for Sanctions against Defendant Home Depot, USA Inc.

After getting no response from defense counsel regarding available dates for Home Depot's PMK deposition, Plaintiff set the PMK's deposition for April 10, 2026. Two days before the set date, Home Depot served untimely objections and stated that neither its Counsel nor PMK would appear for the deposition. At the set deposition date and time, Defense Counsel and Home Depot PMK failed to appear. A Certificate of Non-Appearance was taken. (Ulyshen Decl. at ¶¶5-9, Exhs. 2-5.)

Plaintiff Bittlerlich now moves for sanctions to recover the court reporter cost and counsel's time to meet and confer and file this motion. Defendant Home Depot opposes. Plaintiff Bittlerlich replies.

The Court finds the lack of response from defense counsel regarding a simple housekeeping matter of providing mutually available dates for a deposition troubling and unacceptable. This Motion could and should have been avoided.

Ruling

Having considered all the submitted papers from counsel, the Court GRANTS Plaintiff's Motion in its entirety and issues sanctions against Defendant Home Depot USA Inc. and its counsel for record, the law firm of Ivie, McNeill, et al, jointly and severally, the amount of \$3,148.35, payable to Plaintiff's counsel for record, payable on or before June 22, 2026.